

ANC

IMAGINATION

SCIENCE FICTION

JUNE, 1956

35¢

**BATTLE FOR
THE STARS**

by Alexander Blade



ANC
IMAGINATION
SCIENCE FICTION

JUNE, 1956

35¢

**BATTLE FOR
THE STARS**

by Alexander Blade



The Project Gutenberg eBook of Dalrymple's Equation

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Dalrymple's Equation

Author: Paul W. Fairman

Illustrator: W. E. Terry

Release date: November 17, 2021 [eBook #66756]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: Greenleaf Publishing Company, 1956

Other information and formats: www.gutenberg.org/ebooks/66756

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK DALRYMPLE'S
EQUATION ***

**You meet a lot of screwy people when you
do police work. Like the guy who popped up in
a murder job. Offered to solve the case with—**

Dalrymple's Equation

By Paul W. Fairman

Illustrated by W. E. Terry

**[Transcriber's Note: This etext was produced from
Imagination Stories of Science and Fantasy
June 1956**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

with his head on the bar and said, "Deader than a lamp post for my money."

A young lad—around twenty-three or four—lying there as though he'd had one too many and was sleeping it off. He *had* downed one too many. And he would spend all eternity sleeping it off.

He was all through.

The barkeep stood there with his apron hanging out and a baffled look on his face. A look that had all the earmarks of being genuine. I said, "Kennedy—Homicide. What happened?"

The barkeep shrugged and licked his dry lips. "I dunno. He just keeled over. I got scared and called the cops."

The kid certainly looked like a morgue job, as I said, but we don't take things like that for granted. The squad car boys had called General Hospital and now a couple of internes came in with a respirator. They didn't use it, though. One of them put his nose close down to the kid's mouth and then looked at the barkeep. "You served him a drink?"

The barkeep nodded. "That's what he came in for."

"Let's see the bottle."

The barkeep gave that a little thought and then took a bottle off the rack and pushed it over the bar. The interne sniffed it, made a face and said, "There's enough arsenic in there to depopulate New Jersey."

"Arsenic!" the barkeep croaked. "You're crazy! We don't serve nobody no arsenic here!"

The interne looked at Donovan and me and said, "Call your meat wagon, lads. This one is beyond us."

He had identification—an Arthur Davis, with nothing at all sinister in his wallet. The lab men came and there was a lot of activity for an hour or so and then we padlocked the joint and took the barkeep downtown with us. His on-the-spot story was simple. Davis had come in and ordered a drink. The barkeep served it up. Davis knocked it off. The drink, in turn, knocked Davis off.

The barkeep's name was Timothy Garver. He was a middle-aged cork puller who had been in the business most of his life. We ran him through R and I

and found him clean. Then we sat him down in the interrogation room and started digging into him.

"What did you have against Davis?"

Garver looked like a flabby-jowled ghost. His hands shook. "Nothing. So help me. I never seen the guy before."

"You think we'll swallow that?" Donovan asked. "You think you're playing with school kids? Telling us you poison a guy you never saw before?"

I said, "Maybe he did it for laughs."

"I didn't poison him!" Garver pleaded. "You got to believe me!"

"You mean there wasn't any poison in that bottle?"

"Sure there was—if you say so. What I mean is I didn't put it there. I didn't know it was there. I—"

"What you mean is you'd planned to get the guy out into the alley after he was dead and you lost your nerve after he keeled over."

"No—no! Nothing like that."

"You had that bottle spiked, waiting for Davis to come in."

"No—no! It was just an ordinary bar bottle."

"What do you mean by that?"

"Every tavern has a brand of whisky they push—their bar whisky. When a customer isn't particular about his brand we give him the bar liquor."

It seemed to me the guy was gaining courage. He wasn't quite as nervous as he'd been. "You served other people out of that same bottle?" I asked.

He licked his lips and dropped his eyes before he answered. "Sure I did."

"But that was before you put the arsenic in it."

"I didn't put any poison in that bottle. And you guys can't pin this on me!"

"What makes you think we can't?"

"Because I never knew the fellow and you can't prove I did. So how are you going to make anybody believe I killed somebody I didn't know and had nothing against. You think I'm nuts or something?"

"It's a possibility," I said.

Donovan narrowed his eyes at Garver and said, "You're holding something back. Come on! Out with it."

Again that guilty look as Garver shook his head. But you can't send a guilty look to the chair and it seemed Garver had us stymied. At least for a while. We juggled him on suspicion but we knew unless we got something else to strengthen the case we wouldn't get an indictment against him. There just wasn't enough.

Donovan and I chewed it over with the Captain and he couldn't give us any help except the advice to keep plugging. We told him we'd try to come up with something and went on back to the tavern.

The owner had been there and gone and we still had a patrolman stationed in front. Donovan unlocked the door and released the patrolman for his regular beat and we went inside.

It was very quiet. Naturally. Nothing is quieter in this world than an empty bar. I said, "Well, where do we start?"

Donovan shrugged. "You got me. And you know damn well nothing's going to happen on this case until it breaks from the outside."

"That's right." What he meant was a new angle coming from a stoolie. Or something opening up while we investigated Davis' background or Garver's.

But something new was added right there in the tavern. Very suddenly. A guy popped up from behind the bar and said, "Hello."

We whirled around and looked at him and Donovan snorted, "Who the hell are you?"

"My name is Tennyson Dalrymple."

"What kind of a label is that?"

The man came around from behind the bar. "I liked it—I took it. If it annoys you I'm sorry." But you could tell by the sneer on his face that he wasn't sorry at all.

He was a medium-sized unattractive figure of a man and yet you couldn't put your finger on just where the unattractiveness came from. He wasn't good looking but neither was he repulsive. He didn't have a superman's frame but neither was he a cripple nor a malformed freak. There was just something about him you took an instant dislike to and the dislike stayed with you.

And Dalrymple seemed to enjoy increasing the antagonism. He wore a habitual sneer and his voice had a cutting quality to it.

I said, "What the hell are you doing in here?"

"Going about my business."

"Entrance is prohibited. There was a policeman in front. The door was locked."

"There's a back door."

"That was locked too."

"Locks are silly things. Any fool should be able to handle such feeble devices."

Donovan was snarling. "Look, brother. You're talking yourself right into trouble. Now tell us what you're doing here and tell it quick."

"Reading the gas meter."

"Why?"

"Why would anyone read a gas meter? I work for the gas company. This place is on my route."

"I think you're lying."

"It will be easy enough to find out."

"We'll find out at headquarters."

"You're taking me in?"

"What do you think?"

Dalrymple certainly wasn't afraid of cops. He shook his head in disgust and said, "This is certainly a stupid world you live in. A world of idiots. Really it is."

Normally I'm pretty easy going but this punk with his talent for rubbing people the wrong way, just plain got me. "If you're so damn smart why are you reading meters for the gas company?"

He grinned, and his grin said he was happy at getting a rise out of me. "I just arrived recently. The job will do until I get around to what I'm planning."

Donovan vented his hostility by hauling the guy out to the car. Dalrymple made no resistance but Donovan managed to get mildly rough regardless. This also seemed to make the little intruder happy. As though he took the roughness as a sign he'd got under Donovan's skin too. Which he had.

He threw a few insults at us while we rode to headquarters but we held in, knowing if we gave ourselves an inch we'd take a mile and slug him and have it over with.

In the interrogation room we went at him with all the fixings. A strong light in his eyes—cigarette smoke in his face.

Donovan, with a snarl on his puss said, "All right, buster. Let's cut out the jokes. What were you doing in that tavern?"

"Reading the gas meter."

"I said cut out the jokes."

"You've got my identification. What makes you think I had any other reason for going there?"

"I'll ask the questions. Maybe you don't realize what a spot you're in."

"This is idiotic. This whole procedure emanates from your personal dislike of me. All you have to do is call the company."

"What do you know about the Davis killing?"

"Only what I heard in the neighborhood. Intriguing little equation, isn't it?"

I think we'd realized from the beginning that we had nothing on Dalrymple and that we wouldn't be able to involve him. He'd hit it on the nose when he said our motivation was personal dislike. Finally I went out and called the

gas company, realizing we'd delayed doing this because we knew it would lose Dalrymple for us.

When I went back and told Donovan, he still hated to let go. "You know," he told the sneering little meter-reader, "we can still throw you in the can."

"What for?"

"Trespassing, Breaking and entering."

"Oh, yes. But you won't."

"And why not?"

"Because it would be too small a triumph and you know you would be acting from spite. It would diminish your stature in your own eyes."

Donovan was trying to swallow his helpless wrath when I remembered something Dalrymple had said. "Listen, punk. Exactly where did you come from?"

"That's right. You made some funny cracks. You said, to quote, 'This is certainly a stupid world you live in. A world of idiots.' You also said, 'I've just arrived recently.' Now it occurs to me—"

"That I might have come from a place beyond this planet you call Earth?"

"No. That you're a crackpot—a psycho—and maybe we'd *better* hold you."

He sneered at me and ticked off his replies on his fingers. "I did come from a world far away from yours. I'm not a crackpot—not a psycho. And you will not hold me."

I looked at Donovan. Donovan looked at me. His voice gentled into a tone of soft contempt.

"Just where *do* you come from, punk?"

"From Arva Majoris and don't bother looking it up. It's a planet in a galaxy beyond the conception of your most brilliant minds. And I use the term *brilliant* very loosely."

"And how did you get here?"

"You couldn't possibly understand if I told you. Your elemental mind simply couldn't grasp the mathematical accident that brought me here; nor the ten-

million-to-one chance of it ever happening again."

Donovan grinned in anticipation. "And you actually think we aren't going to turn you over to Psycho?"

"Of course you're not."

"And for what reason will we refrain from such?"

"Because if you do that, you'll never get your stupid little murder solved."

I found myself poised and ready to pounce. "Then you *have* been holding out."

"If you mean do I know who killed Davis—no. If you mean can I find out—yes."

"Well, well," Donovan growled. "He's a detective too."

Dalrymple split a sneer between us. "It's nothing but a mathematical problem. In the world I come from, students corresponding to your first-graders are started out on far harder equations."

"So you can just take a pencil and figure it out, eh?"

"Certainly."

I've tried to remember since, exactly what my reaction to Dalrymple was at that time. Hatred transcended any other emotion I may have had. But there was something else. A feeling of almost personal discomfort springing from the certainty that he wanted us to hate him, or at least didn't care whether or not we did. This was a part of my reaction. And wondering why, also.

There was an element of vague fear, too, and of this I'm sure—a vague senseless conviction this crackpot could do all he claimed he could.

I remember that when this last came to my conscious mind, I rejected it with indignation. And I knew Donovan was rejecting something too. He turned from Dalrymple with a sneer and said, "We haven't got time to fool with psychos. We've got a murder to solve. Kick this guy out and let the white coats find him all over again."

I was sneering too. I took out a pencil and threw it at him and said, "All right, wise guy. There's one. Let's see what you can do."

"Have you got a piece of paper?"

Almost savagely, Donovan ripped a page off the calendar. It was blank on the back. He threw it on the table and all the time I could see his eyes. They were asking, *Why in the hell am I doing this?* and trying to cover the question by showing contempt.

We glanced swiftly at each other and there was guilt in both our faces; like two realists meeting outside a fortune teller's tent. Then Dalrymple took over.

"We have certain facts," he began. "A dead man; the person who admits he went through the physical motions of killing him. We also have the method of producing death—poison—and the setting of the crime."

"I think we've had enough of this clowning," Donovan said in a husky voice.

Dalrymple ignored the interruption, not even bothering to sneer at Donovan. "As every school child on my planet knows, each of these facts must be given a symbol and must become a part of our exploratory equation."

I was a little rusty on such things but it sounded to me about the same way school children on our planet went about solving problems in algebra. I didn't say anything though.

Dalrymple had the pencil racing over the paper, laying out a series of weird symbols the like of which I had never seen. They were neither numbers nor letters; nor the kind of geometric or algebra symbols used on earth either. Of that I was sure.

The closest I can come is to compare them to Egyptian hieroglyphics and yet that's far from the mark. But whatever they were, Dalrymple seemed to know exactly what he was doing.

After a few minutes, he leaned back and said, "There—the exploratory equation is complete. Now we search it for flaws."

Donovan and I had got interested to the point that hostilities were temporarily suspended. Donovan asked, "Search what for which flaws."

"You haven't the mental scope to understand even the basics of what I'm doing, but maybe you can understand this: There is no such thing as chance in a civilization or a culture which is properly based upon mathematics. In such a civilization lies and evasions are unheard of because all action and motivation past, present, or future, can be evaluated and revealed in complete exactitude."

We were trying to follow along. I said, "We've got things like that. Robot brains, we call them. They figure out impossible problems."

And it came to me at that moment how we were taking for granted, through our conversation, our statements, and even our thinking, that this Dalrymple was exactly what he'd said he was—a man from another world.

He said, "I know what you refer to, but they are so childishly conceived as to be almost useless." The old sneer again.

Donovan growled. "You talk a lot but you haven't proved a damn thing."

"On the contrary. The flaws in this equation stand out by themselves. For instance, our *zong* is implicated but must obviously be supplemented in order to balance the *terz* shading of the exploratory equation."

"Are you kidding?" Donovan rasped.

"I'll forego technical terms and translate into realities you can grasp. It amounts to this: The bartender poured the actual poison into the glass, but all unknowing. However, as a dominant factor of the equation he must be further developed along the lines of secondary motivation. In other words, a completely unrelated motivation on his part cleared the way for the crime."

Dalrymple's fingers were flying. More of the weird symbols were appearing. "The motivation for the weight he bears in the case is made up of two characteristics—habit and greed."

"And where does that get us?" I asked.

"It reveals the fact that the bartender poured the poison into the bottle. But without knowledge that it was poison nor with malicious intent."

"That's impossible!" I said.

"Not at all. The whole sequence becomes clear when we strive to complete our equational balance in the first phase. The bartender poured an unconsumed drink back into the bottle after whoever ordered it walked out without drinking it."

Of course! The logic of it hit Donovan and me at the same moment. Donovan said, "How in the hell did you ever think of that?"

He meant it as a compliment but Dalrymple did not take it as such. "I didn't think of it, you fool. I worked it out. Haven't you understood anything I've told you? It's all here in the progression of the equation. Incidentally, that factor is the pivot of the whole sequence. Your stupid logic should carry you on from there."

"Somebody was trying to poison somebody else!" Donovan said.

"There had to be two men," I added. "They came in and ordered drinks. One poured poison in the other's drink. Then they left without—"

Dalrymple was leering at me. "How about one man and—suicide?"

I swore at myself inwardly for giving him the opening. But he turned back to his symbols and said, "By sheer blundering chance you hit it, though. It was two men and attempted murder."

Donovan wasn't having much to say. Dalrymple threw down the pencil. "I'll be going now. I have more important things to do."

"Can you give us the names of the two men?" I asked, and again swore at myself for being over-eager.

Dalrymple gave me a long, disgusted clinical look. "I can, but I won't. It would take another hour to round out the equation and I don't feel like doing all your work for you. If you can't take what I've given you and tie up the case, then you'd better both resign."

He got up and started to leave. At the door, he turned. "I live at the Crestwood Hotel if you want to get in touch with me again." He sneered. "Maybe you'll need help some day in tying your shoes."

He left. Neither Donovan nor I made any attempt to stop him. After a long minute Donovan said, "We can't let him go. He's involved in that killing."

He's got to be. How else would he know?"

"Are you sure he's involved?"

Donovan didn't answer. He picked up the pencil and snapped it in two with a savage gesture. "The sneering little son-of-a—"

"Besides, we've got no proof he was right in anything he said."

"Let's go find out."

We found out. It didn't take long and we got a citation. We hit Garver with one question—"Who was in the bar just before Davis entered?" and he collapsed right in our laps. We got all he knew and it wasn't hard to trace down two guys named Kinder and Walpole.

They were both drunk when they came in and Walpole had some arsenic with him that he was going to make a bug spray with. He got sore at Kinder for some drunken reason and poured some of the stuff into his drink while Kinder was in the washroom. Then something pulled them back into the street before they had their drinks. Garver heard metal grind and thought that was probably it. Once outside, they probably forgot what tavern they'd been in because they didn't return.

Garver was glad to get rid of them. He hadn't seen the poison-pouring bit and dumped the shots into the bottle. When Davis keeled over as a result of the next shot out of the bottle, Garver was scared. He could lose his job and his boss could have lost his license for serving drunks and for pouring the whisky back.

So that was the case. A tragic incident, with Walpole not even remembering what he'd done. And with Davis dead.

We would have been better off leaving it there—charging Dalrymple off as a crackpot who had made a lucky guess and taking the credit for breaking the case. We *did* take the credit, but it was hard to believe, once he'd gone, that Dalrymple was actually for real. So one afternoon a couple of weeks later we were passing the Crestwood Hotel. Donovan braked the car and squinted at the building.

"This is where he said he lived."

I knew who Donovan meant. "Uh-huh."

"Let's go up."

"Why not?"

We went in and got the room number from the clerk and went on up. We knocked. Dalrymple opened the door. He hadn't changed a bit. There was a sneer on his face, hostility in his voice when he said, "Ha—the police force. What happened? Somebody steal your squad car?".

He turned around before we could answer and went back into the room. We followed him and stood there looking at the layout. He had a big table in the middle of the floor and there was a huge sheet of paper on it. The sheet was almost completely covered with the funny symbols he'd used in solving the bar poisoning. Or had he solved it?

Anyhow, he went back to his work as though we hadn't even come—adding more symbols along one edge—and finally Donovan asked, "What in the hell are you doing?"

Dalrymple looked up as though annoyed at being disturbed. "I'm arranging to stay on your planet. I like it here."

"But what's all that got to do with staying?"

"I have to have money. The way things are done here, money is vitally necessary."

"How are you going to get it?"

Dalrymple looked up and his sneer brightened. "I'm going to steal it."

Donovan and I looked at each other in a kind of double-take. Then I said, "I don't suppose you'd care to tell us how and where you're going to do the stealing?"

"I won't tell you how—that would be silly. I don't mind telling you where." He put down another symbol.

"All right—where?"

"I'm not quite sure yet. Chicago, or New York, or Pittsburgh, or.... This is the master plan. I've almost finished. It involves the principals—the method of

operation. There is much more to be done of course. Assistants will have to be approached, analyzed mathematically as to capabilities—"

"How much money are you thinking of stealing?"

"I figure I'll need about five million," Dalrymple said calmly.

Donovan and I looked at each other again and our eyes asked the questions. What should we do about this? Haul the guy in and get laughed at? Or did we have a right to haul him in if we wanted to? Just call him a crackpot and let it go at that?

Sure. It was the obvious thing to do. And the easiest. Why stick our necks out. And at that moment I saw Dalrymple smile ever so slightly as though he knew exactly what was going on in our minds—had made allowances for it on his damned chart.

Donovan shrugged. "Let's get away from this creep," he said.

We turned and walked out.

And we never saw Dalrymple again. In fact I'd practically forgotten about him, when a year later—the date was January 17, 1951—I came back to the squad-room late in the afternoon and there was a paper lying on the desk Donovan and I used. Its headline read:

STICKUP MEN GET SEVEN MILLION IN BOSTON

And the story went on to tell of the now famous Brinks holdup in that city; a holdup that had not been solved to this day; a seemingly perfect crime.

Still nothing for me to get excited about. Not until I saw the letter that had been lying under the paper. It was addressed to both Donovan and me—the names and destination printed in lead pencil. There was no return address. I tore it open. A white card fell out. On the card was printed two words—nothing else. The words read:

—OR BOSTON.

So that's where we sit now. Almost seven years ago that stickup occurred. For seven years Donovan and I had waited for the law to crack it so we could quit wondering; so we could tell ourselves that Dalrymple was just another screwball.

But the statute of limitations nearly ran out on the great Brinks robbery and now we're beginning to wonder if it really was solved. Wondering if we could have stopped it by stopping Dalrymple, the brain behind it all.

Wondering if he really was a man from another—oh hell! It just couldn't be!

Or could it?

*** END OF THE PROJECT GUTENBERG EBOOK DALRYMPLE'S
EQUATION ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.